

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 15, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV02495

CREDIT CORP. SOLUTIONS v. GONZALEZ

(UNOPPOSED) PLAINTIFF’S MOTION FOR JUDGMENT ON THE PLEADINGS

Plaintiff’s unopposed motion for judgment on the pleadings is granted. The Court will sign plaintiff’s proposed orders granting the motion and entering judgment.

I. BACKGROUND

This is a limited jurisdiction collections case. Plaintiff alleges defendant owes it \$7,987.69 for a credit card debt (breach of contract) and costs of suit. It moves for judgment on the pleadings as to the entire action on the grounds that its complaint and defendant’s answer entitle it to judgment as a matter of law. Defendant is self-represented. He admits all statements in the complaint are true due to economic impact of Covid and supporting family illness. (Answer, September 11, 2025.)

II. LEGAL STANDARDS AND DISCUSSION

Cal. Code Civ. Proc. section 438 Judgment on the pleadings provides:

(c) (1) The motion provided for in this section may only be made on one of the following grounds:

(A) If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.

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(d) The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.

When the moving party is the plaintiff, the only ground for a motion for judgment on the pleadings is “the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court must disregard all controverted allegations in the complaint and accept all facts properly pleaded in the answer. (*Sebago, Inc. v. City of Alameda* (1989) 211 Cal.App.3d 1372, 1379-1380.) “A motion by plaintiff for judgment on the pleadings is in the nature of a general demurrer, and the motion must be denied if the defendant’s pleadings raise a material issue or set up affirmative matter constituting a defense.” (*MacIsaac v. Pozzo* (1945) 26 Cal.2d 809, 812-813.) The Court assumes the truth of all material allegations in the challenged pleadings no matter how improbable. (*Sisemore v. Master Financial, Inc.* (2007) 151 Cal.App.4th 1386, 1397.) Further, the Court will take judicial notice of records, such as admissions, answers to interrogatories, affidavits and the like, when considering a demurrer or motion for judgment on the pleadings. (*Morris v. Harbor Boat Bldg. Co.* (1952) 112 Cal.App.2d 882, 886; *Columbia Cas. Co. v. Northwestern Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 468; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.)

Here, facts constituting breach of contract and the amount of the debt were deemed true. Further, as noted, this motion is unopposed, which the Court deems a further concession as to the merits of plaintiff’s claim. (*D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground].)

Defendant’s status as a self-represented party does not provide a basis for preferential treatment. “When a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys.” (*Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638.) This means that defendant is “held to the same restrictive rules of procedure as an attorney.” (*Id.* at p. 638-639.)

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No. 25CV00973

COSTA v. GENERAL MOTORS, INC.

DEFENDANT’S MOTION FOR SUMMARY JUDGMENT

The motion for summary judgment is granted. Defendant made a prima facie showing that the cause of action for fraudulent inducement – concealment is barred by the applicable statute of limitations. Plaintiff failed to raise a triable issue upon burden shifting.

I. BACKGROUND

On May 10, 2017, plaintiff Gary Costa (“plaintiff”) purchased a new 2017 Chevrolet Colorado (“the vehicle”) from Merced Chevrolet. On May 18, 2023, plaintiff brought the vehicle to GM’s (GM” or “defendant”) authorized repair facility, Chevrolet of Watsonville, with issues regarding the check engine light. On June 27, 2023, plaintiff again brought his vehicle in for repairs to Chevrolet of Watsonville, with various complaints including check engine light going on, the fans running after the vehicle shut off, and shimmying when driving above 55 miles per hour. On July 3, 2023, plaintiff brought the vehicle back to Chevrolet of Watsonville for complaints regarding the check engine light going on and off.

On March 27, 2025, plaintiff filed this lawsuit, alleging four causes of action for breach of express and implied warranties pursuant to the Song Beverly Act and a fifth cause of action for fraudulent concealment against defendant General Motors (“defendant”). After a series of demurrers, fraudulent inducement – concealment is the sole surviving cause of action.¹ Plaintiff asserts that “GM committed fraud by allowing the Vehicle to be sold to Plaintiff without disclosing that the Vehicle and its 8-speed transmission were defective and susceptible to sudden and premature failure.” (SAC at ¶ 58.)

II. DEFENDANT’S MOTION

Defendant moves for summary judgment pursuant to Code of Civil Procedure section 437c, subdivision (a)(1). Defendant contends that the evidence contradicts plaintiff’s claim that he was fraudulently induced to purchase a vehicle with a defective transmission because plaintiff did not experience transmission-related issues during the nearly eight years he owned the vehicle before filing this action and did not communicate transmission related complaints to defendant’s authorized repair facility.

Defendant’s motion forwards four issues for summary judgment. First, defendant asserts the fraudulent inducement – concealment claim fails because it is time-barred by the three-year

¹ This is the second cause of action in the Second Amended Complaint.